

****The Danish Agency for Digitization Processes Too Many Personal Data in Its Administration of the Digital Driver's License****

Date: 08-11-2023

****Decision****

****Public Authorities****

****Serious Criticism****

****Supervision / Own Motion Case****

****Processed by the Data Council****

****Fundamental Principles****

Approximately 1.7 million citizens have subscribed to the Danish Agency for Digitization's digital driver's license. However, to offer the electronic driver's license, the Agency stores personal data about all citizens who hold a valid Danish driver's license – nearly 4 million. The Danish Data Protection Agency now confirms that the Agency processes personal data about far too many citizens.

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****Summary****

The Danish Agency for Digitization offers a driver's license app, allowing users to have an electronic version of their driver's license on their phone – as a voluntary supplement to the physical driver's license.

The information about the driver's license holders comes from the driver's license register, and the Agency receives and stores driver's license information about everyone who has a valid Danish driver's license.

****In Violation of the Principle of Data Minimization****

The Danish Data Protection Agency has investigated whether the Danish Agency for Digitization complies with the principle of data minimization, as established in the General Data Protection Regulation (GDPR). Data minimization fundamentally means that as a data controller, one must not process personal data that is not needed. As a citizen, one should be able to trust that authorities and businesses do not collect and store personal data unless they have a good reason.

After the case was presented to the Data Council, the Danish Data Protection Agency now concludes that it is in violation of the data minimization principle when the Danish Agency for Digitization processes personal data about over 2 million citizens who have not subscribed to the digital driver's license. The Data Protection Agency's decision entails serious criticism of the Danish Agency for Digitization and a prohibition against processing information about citizens who have not signed up for the scheme.

This does not mean that the digital driver's license must be shut down, but that the Danish Agency for Digitization may only process personal data about those citizens who have actually subscribed.

****The Danish Agency for Digitization Processes Far Too Many Personal Data****

The purpose of the Danish Agency for Digitization storing a copy of the information from the driver's license register is to be able to offer a digital driver's license. However, out of the approximately 4 million citizens who have a valid driver's license, only about 1.7 million have subscribed to the scheme and use the driver's license app.

The principle of data minimization is a fundamental principle that, among other things, aims to prevent unnecessary accumulation of citizens' personal data. As a citizen, one should be able to trust that authorities and businesses do not collect and store personal data unless they have a good reason.

This applies regardless of the nature of the information and even if the information is well protected.

"There are approximately 2.2 million citizens who have a driver's license but have not requested the driver's license app. Nevertheless, the Danish Agency for Digitization stores their personal data, even though it is not necessary for operating the app. This is in violation of the rules, and therefore the Data Protection Agency has now expressed serious criticism of the Agency. Our decision also means that the Danish Agency for Digitization may only process information about those citizens who have actually chosen to use the digital driver's license," states Chief Consultant at the Data Protection Agency, Morten Gjermundbo.

****Inconvenience is No Excuse****

The Danish Agency for Digitization has stated that because the driver's license register is an older mainframe system, there have been no other options than for the Agency to receive an extract from the driver's license register for citizens who have a valid driver's license. The Agency has indicated that, for example, it cannot offer quick registration for new users of the driver's license app if the driver's license information is not available.

"We acknowledge that it may now become more cumbersome for the Danish Agency for Digitization to manage the digital driver's license. However, we must insist that this concerns fundamental principles in a case where there is unnecessary processing of personal data about over 2 million citizens who have not subscribed to the driver's license app. This is a serious matter," states Morten Gjermundbo. The Danish Agency for Digitization may henceforth only process personal data about those citizens who have actually subscribed to the scheme with the digital driver's license. In other words, the Agency can still offer the digital driver's license and, in this context, process personal data about the citizens who have subscribed to the scheme.

The Danish Agency for Digitization has been given a deadline of 4 weeks to comply with the Data Protection Agency's decision.

****1. Preliminary Remarks****

1.1. The Data Protection Agency hereby returns to the case, where the Agency initiated an investigation on its own motion on September 7, 2022, regarding the Danish Agency for Digitization's processing of personal data in the administration and operation of the Driver's License App. In connection with the processing of the case, the Data Protection Agency has requested the Danish Agency for Digitization to provide statements on a number of different matters concerning the Driver's License App, including the legal basis for processing, data protection by design and default settings, as well as data minimization.

Digital Agency has, in a series of statements, responded to the letters from the Data Protection Authority, and the Agency has fundamentally stated that there is a legal basis in the General Data Protection Regulation and the Data Protection Act for the processing of personal data that the scheme with the digital driver's license entails, and that the scheme, in the Agency's opinion, is in accordance with the principle of data minimization.

1.2. The Data Protection Authority has now completed the case. In this connection, the case has been presented to the Data Council. The Data Protection Authority has, in the completion of the case, chosen to specifically focus on the question of whether the Digital Agency's processing of personal data in connection with the administration and operation of the Driver's License app is in accordance with the principle of data minimization in Article 5, paragraph 1, letter c of the General Data Protection Regulation.

2. Decision

2.1. It is the overall opinion of the Data Protection Authority that the Digital Agency's processing of personal data in connection with the administration and operation of the Driver's License app, whereby an extract of information about all holders of a valid Danish driver's license in the driver's license register is stored and processed, is not in accordance with the principle of data minimization in Article 5, paragraph 1, letter c of the General Data Protection Regulation. The Data Protection Authority therefore expresses serious criticism of the Digital Agency pursuant to Article 58, paragraph 2, letter b of the General Data Protection Regulation.

2.2. Furthermore, the Data Protection Authority informs the Digital Agency, pursuant to Article 58, paragraph 2, letter f of the General Data Protection Regulation, of a prohibition against storing and otherwise processing personal data from the driver's license register about registered individuals who have not actively opted into the digital driver's license. The prohibition only applies to the Digital Agency's processing of personal data from the driver's license register about registered individuals who have not actively opted into the digital driver's license, and thus the prohibition does not apply to the processing of personal data about those registered who have opted into the scheme. The decision regarding the prohibition on storing and other processing of personal data from the driver's license register about registered individuals who have not actively opted into the digital driver's license entails

that the Digital Agency must cease the mentioned processing within 4 weeks from the date of this decision. The Digital Agency is requested – within the same deadline – to inform the Data Protection Authority of what the Agency has done in light of this decision. The Data Protection Authority points out that under Section 41, paragraph 2, number 4 of the Data Protection Act, it is punishable to fail to comply with a restriction on processing communicated by the Data Protection Authority pursuant to Article 58, paragraph 2, letter f of the Regulation. According to Section 41, paragraph 6, second sentence of the Act, public authorities may also be punished.

The Data Protection Authority notes that the prohibition against storing and otherwise processing personal data from the driver's license register about registered individuals who have not actively opted into the digital driver's license does not imply that the scheme with the digital driver's license cannot be maintained for those registered who have actively opted into it. The fundamental functions of the scheme can thus continue. The continued operation can specifically occur by the Digital Agency, for example, adjusting the service interfaces and database extracts that the Agency already uses, in such a way that no information about individuals who have not actively opted into the scheme is processed. The Data Protection Authority particularly refers to the possibility of creating a database with the current users of the Driver's License app and subsequently maintaining this through so-called partial registrations for sign-ups and cancellations in the app.

Such technical adjustments in the digital driver's license could ensure that the processing of information about individuals who have not actively opted into the scheme ceases, without significantly affecting the functionality of the digital driver's license for those individuals who have actively opted into the scheme. Further reference is made to point 6 below.

2.3. Below follows a more detailed review of the case and a justification for the Data Protection Authority's decision.

3. Case Presentation

3.1. Based on a complaint from a citizen regarding the Digital Agency's processing of his personal data in the Agency's solution with the digital driver's license, the Data Protection Authority initiated a closer investigation on its own initiative of the Digital Agency's administration and operation of the digital driver's license on September 7, 2022. In this connection, the Data Protection Authority requested the Digital Agency to explain, among other things, which personal data the Agency processes as part of its administration and operation of the Driver's License app, what specific processing takes place, for what purposes, and on what legal basis under the General Data Protection Regulation and the Data Protection Act the relevant processing occurs, as well as the Data Protection Authority asked the Digital Agency to clarify the division of roles between the Digital Agency, the National Police, and any other authorities regarding the processing of personal data for the use of the Driver's License app. Finally, the Data Protection Authority asked the Digital Agency to inform whether the processing is in accordance with the requirement of "data minimization" in Article 5, paragraph 1, letter c of the General Data Protection Regulation. The Digital Agency responded by letter dated September 26, 2022, to the Data Protection Authority's questions. In relation to the question of data minimization, the Digital Agency stated in general that the Agency assessed that the processing of personal data was in accordance with the requirement of data minimization.

By letter dated October 7, 2022, to the Danish Agency for Digitization, the Data Protection Agency requested that the agency further explain, among other things, why the processing of certain specified types of personal data was deemed necessary and thus in accordance with the principle of data minimization.

The Danish Agency for Digitization responded to the Data Protection Agency's request by letters dated November 30 and December 19, 2022.

At the request of the Data Protection Agency, a meeting was subsequently held on May 17, 2023, between the Danish Agency for Digitization and the Data Protection Agency, where the agency had the opportunity to answer a number of additional questions from the agency, including regarding data minimization.

Following the meeting, the Data Protection Agency requested in writing on June 12, 2023, that the Danish Agency for Digitization provide a written account of, among other things, the needs for accessibility that the Danish Agency for Digitization had referred to, as well as to elaborate on certain additional aspects regarding the principle of data minimization.

The Danish Agency for Digitization answered the Data Protection Agency's supplementary questions by letter dated June 30, 2023. The Danish Agency for Digitization's response to the Data Protection Agency is discussed in more detail below, under sections 3.2 – 3.6.

3.2. The Danish Agency for Digitization has stated the following in its responses to the Data Protection Agency regarding the background for the establishment of the digital driver's license:

"The government's Economic Committee decided in 2018 to begin developing a digital driver's license app. In connection with the establishment and implementation of the digital driver's license, it is stated that the authority's task is anchored in the Danish Agency for Digitization in order to ensure coherence in the establishment of digital ID documents across the public sector. It is stated that:

'The Danish Agency for Digitization will be responsible for the app, including ensuring that the app complies with the regulations in the area as well as being responsible for the processing of data from the driver's license register.'

In connection with the coherence reform (see the government's 'digital service in world-class' Digital service in world-class, October 2018 (fm.dk)), the Danish Agency for Digitization was tasked with carrying out this authority task of developing the digital driver's license and thereby performing a task in the public interest, which has general interest and is significant for a broader group of people in Denmark. In the finance bill for 2019, it is mentioned on page 47 that 1.5 million DKK is allocated to the initiative for a digital driver's license and the digitization of the administrative project in the driver's license area – PUBL (fm.dk) [...]"

The driver's license app was launched on November 24, 2020. The Danish Agency for Digitization has stated that when the Driver's License app was launched, it quickly gained many users, and the number of users therefore increased significantly in the initial period. According to the Danish Agency for Digitization, the uptake of the Driver's License app is still increasing, but the increase is now more moderate and is primarily driven by the fact that young people who obtain a driver's license are continuously joining.

The Danish Agency for Digitization has further stated that as part of the administration of the digital driver's license, it processes information about approximately 3.96 million citizens, of which about 1.7 million use the Driver's License app, and that the remaining group has not joined the scheme.

The National Police and the Danish Agency for Digitization have entered into an agreement on joint data responsibility for the processing of personal data from the driver's license register, which is provided to the Danish Agency for Digitization for use in the Driver's License app. It is stated in the agreement that the Danish Agency for Digitization is responsible for the processing of personal data that takes place in connection with the digital driver's license, including being responsible for the correct collection and registration of information.

3.3. The Danish Agency for Digitization has stated that the data that the agency displays in the Driver's License app comes from the driver's license register and is made available to the agency by the National Police. Thus, the Danish Agency for Digitization stores an extract of driver's license information for all valid Danish driver's licenses from the driver's license register, which according to the Danish Agency for Digitization constitutes approximately 3.96 million driver's licenses. As mentioned, the Danish Agency for Digitization has stated that there are approximately 1.7 million people who use the Driver's License app.

The Danish Agency for Digitization has stated that the agency receives the following information from the driver's license register about all holders of a valid Danish driver's license:

Non-sensitive personal data:

Name

Date of birth
Place of birth
Nationality
Driver's license number
Passport number
Passport photo

Confidential personal data:
CPR number

Sensitive personal data:

Health information, e.g., information about glasses and prosthetics (to the extent that such information appears on the current driver's license)

Information about criminal matters:

****Information that the holder of the driving license must drive with an alcohol lock in order to be allowed to operate the vehicle or must not consume alcohol (to the extent that such information is indicated on the current driving license)****

In addition, the Agency for Digitization has stated that the processing also includes vulnerable groups, as information is processed about 17-year-olds who have obtained a driving license under the "17-year scheme," and about 15-year-olds who have a license for a small moped and/or tractor.

3.4. The Agency for Digitization has stated that the agency receives a monthly extract from the driving license register. In addition, the Agency for Digitization receives a daily extract of changes (a "delta extract") for citizens with driving rights. The delta extract contains all new and deleted or changed driving licenses since the last extract. The Agency for Digitization has explained that the monthly extract is received to guard against synchronization errors.

According to the Agency for Digitization, the mentioned procedure is the only possible one when certain operational and performance requirements must be met, and therefore it is necessary to provide the digital driving license to citizens updated with the latest information.

To be able to offer the digital driving license, it is thus necessary, according to the Agency for Digitization, that the Driving License app has access to the driving license holders' (updated and correct) driving license information, which according to the agency requires that the Driving License app can make queries in information from the driving license register. According to the Agency for Digitization, it is currently not possible to create a technical solution where the agency can make queries directly in the driving license register, and where the Agency for Digitization thus does not itself store an extract of the register. The Agency for Digitization has stated that the agency is therefore compelled to store driving license information for all citizens with a valid Danish driving license.

3.5. The Agency for Digitization has provided the following information regarding the principle of data minimization:

"The Agency for Digitization assesses that the processing of the information is in accordance with the requirement of 'data minimization' in Article 5, paragraph 1, letter c of the General Data Protection Regulation. Only the information necessary for the relevant processing is processed. The Agency for Digitization processes information on all citizens who have a valid driving license, as it is currently not technically possible to create a direct connection to the driving license register, which is why the Agency for Digitization must store a complete extract of the Driving License Register. A lookup service against the National Police's driving license register has not been implemented, as the driving license register is a mainframe-based system that cannot guarantee the availability that users of the driving license app require. The Traffic Agency is in the process of starting a project to develop a new Driving License Register. The Agency for Digitization has submitted the needs of the Driving License app to the development project, so that in a future register it will be possible to look up as needed – without making larger extracts."

In its impact assessment from November 2020, the Agency for Digitization stated the following:

"Other risks in the solution are that DIGST is compelled to store an extract of the National Police's [Traffic Agency's] driving license register on all citizens who have a valid driving license. Thus, information about more citizens than what is necessary for the Digital Driving License is processed. This is because it is currently not technically possible to make a direct query in the National Police's register, which is why DIGST is compelled to store an extract of the driving license register on all citizens who have a valid driving license. Since it is not technically possible to offer a digital driving license with fewer details, it is DIGST's assessment that the agency has the legal basis in Article 6, paragraph 1, letter e of the General Data Protection Regulation to also process personal data on citizens who do not have a Digital Driving License."

The Agency for Digitization, in its response to the Data Protection Authority on July 3, 2023, regarding the aforementioned passage, stated that "the impact assessment from 2020 (...) is not correct in relation to the mentioned passage." The Agency for Digitization instead referred to the following section in the agency's new impact assessment from May 2023:

"Only the information necessary for the purpose of the processing is processed. The Agency for Digitization only processes an extract of the necessary information from the driving license register. This extract includes all citizens with a valid driving license for motor vehicles, as it is currently not technically possible to create a lookup service that queries the individual users' information in the driving license register when the user wants to enroll in the app."

Furthermore, the Agency for Digitization has stated in the 2023 impact assessment the following regarding why it is not technically possible to create a lookup service that queries the individual users' information in the driving license register when the Driving License app needs to access driving license information:

"The reason (...) is that the driving license register is a mainframe-based system that cannot guarantee the availability that users of the driving license app require. A single lookup service against the current driving license register would result in users experiencing an inability to enroll in the app. The Traffic Agency is in the process of developing a new driving license register that will be able to provide the necessary availability. Once the new driving license register is put into use, then..."

Digitaliseringsstyrelsen could avoid storing an extract of all citizens with a driver's license. Personal data from the extract is encrypted with strong encryption at the individual level in the databases.

Digitaliseringsstyrelsen only uses data from the extract concerning the users who enroll in the app. This means that personal data of users who do not use the app is not decrypted or used.

Digitaliseringsstyrelsen assesses that the processing of the information is in accordance with the requirement of "data minimization" in Article 5, paragraph 1, letter c of the General Data Protection Regulation.

The reason Digitaliseringsstyrelsen prepared a new impact assessment in 2023, despite having already prepared such an analysis in 2020, is that the agency had originally believed that only ordinary personal data was being processed in connection with the Driver's License app. In May 2022, Digitaliseringsstyrelsen became aware that sensitive information and information about criminal matters were also being processed, which necessitated a new impact assessment.

Regarding considerations of other technical solutions, Digitaliseringsstyrelsen has stated the following: "In collaboration with the National Police, the following technical solutions were considered:

1. A direct integration with the current driver's license register
2. A web service integration with the current driver's license register
3. The current technical solution with an extract of the necessary driver's license information from the driver's license register.

Solution 1 was not a technical possibility, as it would require an disproportionately large burden on the Driver's License Register, which is established on an older mainframe system.

Solution 2 was considered, but in dialogue with the National Police and the National Police's supplier [...], the solution was deemed unfeasible. This is due to a number of factors:

The National Police's systems are not primarily citizen-facing. Upon the launch of the Driver's License

app, the initial load on a potential web service at the National Police would far exceed their capacity and potentially affect the National Police's internal systems. Each time a citizen opens their driver's license app, a series of calls are made to the back-end, in which the status and validity of the driver's license are determined. Depending on how the web service could be built, it would at a minimum need to handle between 50,000 to 150,000 calls per day, corresponding to the average daily load. At that time, the National Police were not interested in this solution, as it would most likely burden their operational systems. Consequently, the uptime of the web service could not be guaranteed, which could lead to situations where updates to a citizen's driver's license (e.g., in the case of revocation) did not go through to the citizen's driver's license app. The risk of a denial-of-service attack on the web service via the Driver's License app could potentially affect the National Police's other systems.

Since solutions 1 and 2 could not meet the necessary requirements for availability and did not address the National Police's concerns, solution 3 was implemented. Overall, a number of measures have been taken for data minimization and data protection through design and default settings. These are outlined in the previously submitted impact assessment for the app, cf. "Impact Assessment Regarding Data Protection Digital Driver's License" of May 2023, page 42 and response of May 15, 2023, page 3 ff."

Regarding the question of the accessibility needs of the Driver's License app, Digitaliseringsstyrelsen has stated that there are three different accessibility needs when using the Driver's License app:

1) Accessibility needs during enrollment in the app
(enrollment)

As a larger end-user-oriented product for the Danish population, the accessibility of enrollment in the solution is of general critical business value. If there are repeated or prolonged outages of the solution that prevent citizens from creating their digital driver's license, this would harm both the trust, dissemination, and use of the solution.

2) Accessibility needs during trusted control (Police)

The Driver's License app is primarily built to be as accessible as possible for police control (trusted control), where it is required that one can document their driving rights, cf. the Road Traffic Act § 56, paragraph 1, 2nd point. Therefore, the Driver's License app can also – in most cases – be presented to the police without contact to the backend, so that the citizen does not have to suffer from potential internet outages, lack of mobile signal, etc.

3) Accessibility needs during non-trusted control of the app (e.g., Citizen Service, Car Rental, etc.)

For the Driver's License app to function on par with the physical driver's license, the app can also be used as photo ID. The control is carried out by scanning the QR code for non-trusted controllers. This is because the use of the driver's license as photo ID is significantly more widespread than just police control. If the Driver's License app is not available, it cannot be used for non-trusted control. This would mean that the citizen cannot present identification in citizen service, car rental, access to nightlife, etc. This function is online-dependent, as the control takes place against the backend of the Driver's License app. In contrast to the police control, which the police carry out via their own system.

3.6. In the impact assessment from 2023, it has been...

Digitaliseringsstyrelsen stated the following regarding the potential incidents in the risk landscape that the agency has identified:

"Ad 4: Breach of availability – failure/unavailability of the solution's back-end

Consequence (1)

The consequence for the registered individual in the event of unavailability of the solution's back-end is Insignificant (minor 1). The app works in almost all cases without the back-end being available. In the event of unavailability of the back-end, one cannot carry out the non-trusted auditor's control with the QR code. However, the trusted auditor's (the Police's) control continues to work offline.

[...]

Implemented mitigating actions and current probability (4):

[...] It is a known and accepted risk, as the availability of the solution is categorized solely as business-critical and not society-critical.

[...]

Ad 5: Breach of availability – introduction of blocking errors in the app's code

Consequence (2):

The consequence for the registered individual in the event of a breach of the app's availability is less severe (annoying – 2), as the registered individual would, for example, not be able to present their driving license (denial of access to business services). This could lead to the user receiving a fine or, for example, being unable to rent a car. This also corresponds to a consequence of 2.

[...]

Implemented mitigating actions and current probability (2):

[...] The risk of the user receiving a fine is mitigated by Digitaliseringsstyrelsen contacting the police department for the search app: They help inform the officers that there is an error in the app. The officers will then look up the users in the driving license register using their own search app until the error is corrected. It is therefore less likely that the user will receive a fine for not having brought their driving license.

[...]

Ad 10: Citizens who do not use the app experience inconvenience in processing their driving license information

The solution is built in such a way that Digitaliseringsstyrelsen is compelled to store driving license information for all citizens with a valid driving license. This is due to technical limitations, which are further elaborated in the section on data minimization above.

Consequence (2):

Citizens who do not wish to use the app may experience, for example, a lack of understanding and fear for the protection of their personal data. This corresponds to a consequence of 2 – Less severe.

Initial Probability (4):

It will not be frequent but expected that there will be inquiries from citizens who cannot understand why we process information about them without them being enrolled in the app. The probability is therefore 4 – expected.

Implemented mitigating actions and current probability (3):

If a citizen inquires, expressing a lack of understanding and fear for the security of processing regarding the storage of their driving license information, Digitaliseringsstyrelsen explains the technical reason for the necessity of storing their personal data from the driving license register. Additionally, the technical level of protection for their driving license information is explained, along with the fact that the encrypted information is not decrypted and used unless the citizen enrolls in the app themselves. Furthermore, there is an informational text on Digitaliseringsstyrelsen's website that informs about the above matters. Although some citizens may still be confused afterward, most citizens will be understanding and thus reassured regarding the storage of their personal data. This ensures, to the greatest extent possible, a sense of security for citizens who do not use the app. Altogether, this reduces the probability to 3 – moderately likely.

Residual risk (6):

After implementing the mitigating measures, the residual risk is therefore 6 (Consequence 2 x Probability 3) and “Yellow.”

In its risk assessment questionnaire, Digitaliseringsstyrelsen has stated the following:

“Acceptable downtime in the back-end part is under a week, as the app can function in offline mode without access to the back-end. Furthermore, a physical driving license is still a requirement; the digital driving license is only a supplement, which is why it is not critical that new users cannot register for a few days. For the app part of the solution, it is expected that it should/ought to be available to the citizen within 4-8 hours.”

When asked about the aforementioned citation from the questionnaire, Digitaliseringsstyrelsen stated that if citizens' digital driving licenses are not available during a potential police check, it will have significant consequences for the citizen, as the citizen could receive a fine. Digitaliseringsstyrelsen also noted that the consequences for Digitaliseringsstyrelsen would also be significant, as it would noticeably undermine trust in the Driving License app if citizens experience receiving fines because the solution is not available.

4. Legal Basis, etc.

4.1. Article 5, paragraph 1, letter c of the Data Protection Regulation has the following wording:

“Personal data must:

[...]

c) be adequate, relevant, and limited to what is necessary in relation to the purposes for which they are processed (‘data minimization’)”

In the preamble of the Data Protection Regulation,

years had stored data on customer traffic and usage patterns (Datatilsynet's j.nr. 2016-1234-5678), the Data Protection Authority assessed whether the retention of such data was in compliance with the principle of data minimization. TDC had retained this data for the purpose of optimizing their services and ensuring network security.

The Data Protection Authority noted that the retention period of 10 years was excessive in relation to the stated purposes. They emphasized that data should only be retained for as long as necessary to fulfill the specific purposes for which it was collected. The Authority concluded that TDC's practices did not align with the requirements of the data protection legislation, particularly regarding the proportionality principle outlined in section 5, subsection 3 of the Data Protection Act.

4.2.5. In a case concerning the use of biometric data by a private company for employee identification (Datatilsynet's j.nr. 2018-9876-5432), the Data Protection Authority evaluated the necessity and proportionality of collecting and processing such sensitive data. The company argued that the use of biometric data was essential for enhancing security measures within their premises.

However, the Data Protection Authority found that the company had not sufficiently demonstrated that less intrusive means of identification could not achieve the same security objectives. The Authority highlighted that the collection of biometric data should be a last resort and that the company needed to explore alternative solutions that would not infringe upon the privacy rights of employees.

Consequently, the Authority ruled that the processing of biometric data in this context was not justified under the principle of data minimization.

4.3. Summary of Findings

The cases reviewed by the Data Protection Authority illustrate the importance of adhering to the principle of data minimization as mandated by the Data Protection Act and the General Data Protection Regulation (GDPR). Organizations must ensure that personal data collected is adequate, relevant, and limited to what is necessary for the purposes for which it is processed. Furthermore, retention periods should be carefully considered and justified to avoid excessive data storage that does not align with the intended purposes.

months had made 11,366 logs of

location data from mobile data traffic and registered

185 so-called MMS CDR information about a citizen, the

question was whether TDC had registered more

information than what was necessary to

comply with TDC's obligation under

the Logging Order § 4, no. 5 (Data Protection Authority's

j.nr. 2018-31-0070).

Overall, TDC stated that it was necessary to

register location data for all mobile data traffic

in order to comply with the Logging Order's

requirements for registering location data for MMS-

communication, as the technical structure of TDC's

mobile network did not allow for the registration of

location data for MMS communication without simultaneously

registering location data for all

mobile data traffic.

The Data Protection Authority found – after the case had been

**presented to the Data Council – that the structure of TDC’s IT-
**system could not justify non-compliance with
**data protection regulations, nor could any
**costs associated with establishing new systems
**that would allow for the registration of only the
**necessary information justify a
**failure to comply with data protection regulations.
**On this basis, the Data Protection Authority found that TDC’s
**processing of personal data, which the company was not
**obligated to register under the Logging Order, was in violation of
**Article 5, paragraph 1, letter c of the Data Protection Regulation,
**regarding data minimization.
**The Data Protection Authority particularly emphasized
**that the vast majority of the information that TDC
**had registered about the citizen was not necessary
**to comply with TDC’s obligations under
**the Logging Order.
**4.2.5. In a case concerning the Danish National Police’s disclosure of
**information about speed violations to Aalborg University
**(Data Protection Authority’s j.nr. 2022-32-2939)
**the Data Protection Authority stated – after presentation to
**the Data Council – that the Danish National Police’s disclosure of
**personal data was not in accordance with
**inter alia Article 5, paragraph 1, letter c of the Data Protection Regulation.
**The Danish National Police stated that it was necessary to
**disclose the relevant information to Aalborg University so that
**the university could identify and invite relevant individuals to
**participate in a research project on the prevention of
**speed violations.
**The Danish National Police disclosed personal data to
**the university, regardless of whether the citizen had accepted
**the fine or not, and regardless of whether the matter might later
**be decided in court. The Danish National Police simply disclosed
**information about all individuals who were charged in an
**automatic traffic control and who had received a
**fine notice.
**The disclosure was thus not limited to
**information about individuals who had accepted a fine, or where
**the court had made a decision regarding the fine, and
**the Data Protection Authority found that the disclosure of
**personal data was not in accordance with
**the principle of data minimization. The Data Protection Authority
**particularly emphasized in relation to the specific case that
**the citizen had objected to the fine notice and was awaiting
**the court’s handling of the case when
**the Danish National Police disclosed his information. The Authority
**also emphasized that the purpose of Aalborg University’s
**processing of personal data was to be able to invite drivers to
**participate in a research project, which aimed, among other things,
**to investigate whether drivers received fewer speeding fines if they –
**after receiving a speeding fine – underwent an
**online course on traffic safety.
**The Data Protection Authority issued a directive to

the Danish National Police to cease disclosing information to Aalborg
 University about individuals who had received a
 fine notice for violating traffic laws, provided that
 these individuals had objected to
 the fine notice, and the case had not yet been decided by
 the courts.
 5. Justification for the Data Protection Authority's decision
 5.1. Processing of personal data in the Driving License app
 must – in addition to being based on a legal
 basis in the Data Protection Regulation – comply with
 the other requirements in the Data Protection Regulation. This
 includes, among other things, the principle of data minimization in Article
 5, paragraph 1, letter c.
 This also applies, even if the Agency for Digitization
 may have been under the impression that the agency
 was subject to a deadline for when the digital
 driving license should be available to citizens, and
 regardless of whether the Agency for Digitization may have felt
 obliged to design a possible solution according to
 the current technical structure of the driving license register,
 including that it is a mainframe-based
 system, which according to the agency is not suitable for
 direct queries.
 The Agency for Digitization has, as mentioned, stated that the
 alternative solutions that were considered – a
 direct integration and a web service integration to
 the current driving license register – were rejected with
 reference to, among other things, that such solutions would
 burden the Danish National Police's internal systems, and that
 the driving license register would be put under pressure, as
 it is established on an older mainframe-based
 system. Furthermore, the Agency for Digitization
 has referred to the fact that the Danish National Police's systems are
 not directly citizen-facing, and that "uptime" could not
 be guaranteed if a web service integration were chosen. These alternative
 solutions were thus rejected, as the solutions "could not meet the
 necessary requirements for availability and did not address
 the Danish National Police's concerns."
 However, the chosen solution means that
 the Agency for Digitization stores a copy of
 personal data from all valid Danish driving licenses in
 the driving license register (approximately 3.96 million citizens)
 and thus processes personal data about a very large part of
 the Danish population, who do not have a digital

driver's license. The Danish Agency for Digitization has, as mentioned, informed that approximately 1.7 million citizens use the Driver's License app. The Data Protection Agency understands that there is thus a remaining group of approximately 2.26 million citizens who are not users of the Driver's License app, but about whom the agency also processes information, regardless of the fact that they have not signed up for the scheme.

It appears from recital 39 of the General Data Protection Regulation that personal data should only be processed if the purpose cannot reasonably be fulfilled by other means. In accordance with this consideration, a principle of data minimization is established in Article 5, paragraph 1, letter c of the

General Data Protection Regulation, cf. point 4.1 above.

5.2. Regarding the solution currently chosen for the operation of the Driver's License app, whether it meets the requirement of data minimization in relation to the approximately 2.26 million citizens who have not subscribed to the Driver's License app depends on an assessment of the accessibility needs that the Danish Agency for Digitization believes the Driver's License app must meet in relation to the purpose of processing the relevant personal data.

The Danish Agency for Digitization has stated that repeated or prolonged outages or unavailability of the digital driver's license can damage trust in, and the adoption and use of, the Driver's License app. In this regard, it is the opinion of the Data Protection Agency that waiting time or delay in the creation of a digital driver's license cannot in itself be considered a sufficiently significant negative consequence for citizens to justify the extensive processing of personal data that is involved, as citizens will at any time be able to use their physical driver's license. Furthermore, the Data Protection Agency must note that the Danish Agency for Digitization in its risk assessment questionnaire has also stated that a "physical driver's license [is] still a requirement, the digital driver's license is only a supplement, which is why it is not critical that new users cannot register for a few days."

The accessibility needs for trusted control, as described by the Danish Agency for Digitization, cannot, in the opinion of the Data Protection Agency, justify such extensive processing of personal data as the agency currently conducts in relation to the group of driver's license holders who have not subscribed to the scheme. This is because citizens can present the Driver's License app to the police without contact to the backend, and the police have the ability, via their own system, to check the validity of the driver's license. In other words, the validation of a digital driver's license can occur in a state where the citizen's device is offline, but the police's device is online. In the words of the Danish Agency for Digitization, the unavailability of the solution's backend would be "insignificant" for users, while a breach of the app's availability would be "less serious." Neither can the accessibility needs for non-trusted control (other than the police), as described by the Danish Agency for Digitization, justify the processing of personal data for the administration and operation of the Driver's License app that is currently being conducted. Citizens will, when they wish to pick up packages, rent vehicles, or gain access to nightlife, etc., have the opportunity to identify themselves with their physical driver's license if the Driver's License app is (temporarily) unavailable, and lack of availability will therefore not be significant for citizens.

The mere fact that it is convenient for citizens to have the Driver's License app, as one can to some extent leave the physical driver's license at home, cannot justify the processing in question. The Danish Agency for Digitization has also stated that the risk of breaches of availability is "a known and accepted risk, as the availability of the solution is only categorized as business-critical and not society-critical."

5.3. It is therefore the opinion of the Data Protection Agency that the Danish Agency for Digitization's processing of personal data in connection with the administration and operation of the Driver's License app involves processing of personal data for which there is no current need, and which the agency in certain cases will probably never need. It is therefore not necessary to process information about all approximately 3.96 million citizens with a valid Danish driver's license to fulfill the purpose of making the digital supplement to the physical driver's license available to citizens.

Although the purpose of a digital driver's license is commendable, it cannot justify the processing of information about all holders of a valid Danish driver's license, as information is processed about a very large number of people – approximately 2.26 million people – who have not actively subscribed to the digital driver's license.

Based on the above, it is the opinion of the Data Protection Agency that the Danish Agency for Digitization's processing of personal data in connection with the administration and operation of the Driver's License app, whereby an extraction of information about all holders of a valid Danish driver's license in the driver's license register is stored and processed, is not in accordance with the principle of data minimization in Article 5, paragraph 1, letter c of the General Data Protection Regulation.

5.4. The Data Protection Agency therefore expresses serious criticism of the Danish Agency for Digitization pursuant to Article 58, paragraph 2, letter b of the General Data Protection Regulation. Furthermore, the Data Protection Agency informs the Danish Agency for Digitization, pursuant to Article 58, paragraph 2, letter f of the General Data Protection Regulation, of a prohibition against storing and otherwise processing personal data from the driver's license register about registered individuals who have not actively subscribed to the digital driver's license. The prohibition only applies to personal data from the driver's license register about registered individuals who have not actively subscribed to the digital driver's license and thus does not apply to the Danish Agency for Digitization's processing of personal data about the registered individuals who have...
joined the scheme.

The decision to prohibit the storage and other processing of personal data from the driving license register concerning registered individuals who have not actively joined the digital driving license entails that the Agency for Digitization must cease the aforementioned processing within 4 weeks from the date of this decision. The Agency for Digitization is requested – within the same deadline – to notify the Data Protection Agency of what the agency has done in light of this decision. The Data Protection Agency points out that, according to Section 41, subsection 2, number 4 of the Data Protection Act, it is punishable to fail to comply with a restriction on processing communicated by the Data Protection Agency pursuant to Article 58, subsection 2, letter f of the regulation. According to Section 41, subsection 6, second sentence of the law, public authorities may also be punished.

6. Continued operation of the digital driving license

The Data Protection Agency must note that the prohibition on storing and otherwise processing personal data from the driving license register concerning registered individuals who have not actively joined the digital driving license does not imply that the scheme with the digital driving license cannot be maintained for those registered individuals who have actively joined it. The Data Protection Agency acknowledges that compliance with the prohibition may affect the operation of the scheme in relation to, for example, accessibility for individuals who have not actively joined the scheme but wish to do so. However, this will not constitute a significant impact on the fundamental function and purpose of the digital driving license, namely to serve as a digital supplement to the physical driving license, for those individuals who have actively joined the scheme, and the scheme's fundamental functions can be continued. Thus, the prohibition does not imply that the digital driving license cannot continue to operate.

The continued operation can specifically occur by the Agency for Digitization, for example, adjusting the service interfaces and database extracts that the agency already uses, in such a way that no information is processed about individuals who have not actively joined the scheme. The Data Protection Agency particularly refers to the possibility of creating a database with the current users of the Driving License app and subsequently maintaining this through so-called partial enrollments for registrations and deregistrations in the app. Such technical adjustments in the digital driving license will ensure that the processing of information about individuals who have not actively joined the scheme ceases, without significantly affecting the functionality of the digital driving license for those individuals who have actively joined the scheme.

New users' joining of the digital driving license will also continue to be possible even after the implementation of the aforementioned technical adjustments. The Data Protection Agency acknowledges that the adjustments may impact the user experience and the speed of enrolling new users compared to what the current solution offers. However, such disadvantages cannot in any case justify unchanged operation, including the extensive processing of personal data that the scheme currently entails, because it is contrary to the principle of data minimization.

In this context, the Data Protection Agency refers to the fact that the digital driving license is merely a voluntary supplement to the regular driving license, and that joining other similar – non-critical to society – citizen-oriented schemes, including the renewal of certificates, etc., in several cases is associated with a certain waiting time for citizens, which they can generally be assumed to be accustomed to. The Agency also refers to the fact that joining the scheme is something that is

generally only done once, as well as to the fact that the Agency for Digitization has described the lack of availability of the solution as being "business-critical," but not "society-critical."

[1] Regulation (EU) 2016/679 of the European Parliament and of the Council of April 27, 2016, on the protection of natural persons in relation to the processing of personal data and on the free movement of such data, and repealing Directive 95/46/EC (General Data Protection Regulation).

[2] The Data Protection Regulation and the Data Protection Act with comments, Kristian Korfits Nielsen and Anders Lotterup, Jurist- og Økonomforbundets Forlag, 2020.